

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
HAROLD RIVERS,

Plaintiff,

- against -

THE CITY OF NEW YORK, MICHAEL DUFFY,
and IAN SCHEINBLUR,

Defendants.
-----X

Index No.

Plaintiff designates
New York County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
1055 East 219th St.
Bronx, NY 10469

County of Bronx

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 6, 2020

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff

HAROLD RIVERS

Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
MICHAEL DUFFY, Manhattan North Narcotics, Bureau, 2768 8th Avenue, New York, NY 10039
IAN SCHEINBLUR, Manhattan North Narcotics, Bureau, 2768 8th Avenue, New York, NY 10039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
HAROLD RIVERS,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, MICHAEL DUFFY,
and IAN SCHEINBLUR,

Defendants.

-----X

Plaintiff, **HAROLD RIVERS**, complaining of the
defendants, by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby
sets forth and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. That, at all times hereinafter mentioned, and on
December 19, 2018, the plaintiff, **HAROLD RIVERS**, was and still is
a resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, and on
December 19, 2018, the defendant, **THE CITY OF NEW YORK**,
(hereinafter referred to as "**THE CITY**") was and still is a
domestic municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
December 19, 2018, the defendant, **MICHAEL DUFFY**, (hereinafter
referred to as "**DUFFY**"), was and still is a resident of the City
and State of New York.

4. That, at all times hereinafter mentioned, and on December 19, 2018, the defendant, **IAN SCHEINBLUR**, (hereinafter referred to as "**SCHEINBLUR**"), was and still is a resident of the City and State of New York.

5. That, the plaintiff, **HAROLD RIVERS**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on March 5, 2019; within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **HAROLD RIVERS**, testified at an oral examination pursuant to the General Municipal Law on October 23, 2019; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That on December 18, 2018 the plaintiff, **HAROLD RIVERS**, was working as a plumber at premises known as 135 W. 130th Street in the County of New York, City and State of New York.

7. That he had been working at the aforementioned location since approximately 2:00 PM on that date.

8. That at approximately 5:00 PM, on said date he came outside of the aforementioned building, to obtain tools from his truck, as part of his work, then and there being performed by him.

9. That he was approached by the defendants, their agents, servants, and/or employees, and police officers, who were not wearing uniforms.

10. That the defendants, their agents, servants, and/or employees and police officers had previously raided a building a few houses away, from where the plaintiff **HARLOD RIVERS** was working.

11. That the defendants, their servants, and/or employees and police officers had demanded that the plaintiff **HAROLD RIVERS** place his hands behind his back, and was handcuffed for no reason and no justification whatsoever.

12. That the plaintiff **HAROLD RIVERS** had complied, without resistance.

13. That the plaintiff **HAROLD RIVERS** asked why he was being detained and stopped, yet the defendants, their agents, servants, and/or employees, and police officers refused to give him an answer.

14. That, the aforementioned defendants, their agents, servants, and/or employees and police officers had demanded that the plaintiff **HAROLD RIVERS** give them "heroin", which they claimed was in the possession of the plaintiff **HAROLD RIVERS**.

15. That the plaintiff **HAROLD RIVERS** told the aforementioned defendants, their agents servants, and/or police officers, that he had no possession, and knew nothing about any

"heroin" whatsoever.

16. That without cause, without justification and without reason, the aforementioned defendants, their agents, servants, and/or employees and police officers had pulled down the pants and searched the genital area of the plaintiff **HAROLD RIVERS**, while outdoors, in full sight of other individuals, walking in the street at the aforementioned location.

17. That a tenant from the aforementioned building, had told the defendants, their agents, servants, and/or employees, and police officers that the plaintiff **HAROLD RIVERS**, was indeed working in the aforementioned building, and was not involved in any illegal activity, whatsoever.

18. That the defendants, their agents, servants, and/or employees and police officers refused to listen or interview the aforementioned individual, and nevertheless without probable cause, without reasonable cause and without justification continued to hold the plaintiff **HAROLD RIVERS** for additional and unjustifiable time, and nevertheless continued to thereafter improperly search him, with his pants pulled down.

19. That ultimately, the aforementioned defendants, their agents, servants, and/or employees and police officers had pulled up the pants of the plaintiff **HAROLD RIVERS**, and allowed him to leave.

20. That the plaintiff **HAROLD RIVERS** was never charged with any crime, although he was improperly detained, and

improperly searched without probable cause, without reasonable cause and without justification.

AS AND FOR A FIRST CAUSE OF ACTION

21. That, on December 19, 2018, the plaintiff, **HAROLD RIVERS**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees, and police officers.

22. That, the plaintiff, **HAROLD RIVERS**, was assaulted/battered without justification, without cause, and without excuse.

23. That, the assault/battery took place in front of a premises known as 135 West 130th Street, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **HAROLD RIVERS** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on December 19, 2018, and for sometime prior thereto, defendant, **DUFFY**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, at all times hereinafter mentioned and on December 19, 2018, and for sometime prior thereto, defendant, **SCHEINBLUR**, was a New York City police officer, and/or agent

servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

26. That, the aforementioned assault and battery of the plaintiff, **HAROLD RIVERS**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

27. That, by reason of the foregoing, the plaintiff, **HAROLD RIVERS**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

28. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. That, by reason of the foregoing, the plaintiff, **HAROLD RIVERS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

30. That, the plaintiff, **HAROLD RIVERS**, repeats, reiterates, and realleges, each and every allegation as set forth

in paragraphs 1 through 29 with the same force and effect as if hereinafter more fully set forth at length herein.

31. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

32. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

33. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DUFFY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **SCHEINBLUR** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DUFFY**, who was employed by the defendant, **THE CITY**.

36. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **SCHEINBLUR**, who was employed by the defendant, **THE CITY**.

37. That, by reason of the foregoing, the plaintiff, **HAROLD RIVERS**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

38. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

39. That, by reason of the foregoing, the plaintiff, **HAROLD RIVERS** has sustained damages in an amount in excess of

the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

40. That the plaintiff, **HAROLD RIVERS** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 39 with the same force and effect as if hereinafter more fully set forth at length herein.

41. That, on December 19, 2018, the plaintiff, **HAROLD RIVERS**, was caused to be falsely detained/falsely imprisoned without probable cause.

42. That, the plaintiff, **HAROLD RIVERS**, was falsely detained/imprisoned without a warrant, and without justification whatsoever.

43. That, the false detainment/false imprisonment took place in front of 130 West 135th Street, in the County of New York, City and State of New York, and thereafter continuing at other locations wherein the plaintiff, **HAROLD RIVERS** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

44. That, the aforementioned false detainment/false imprisonment of the plaintiff, **HAROLD RIVERS** , was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

45. That, the aforementioned false detainment/false imprisonment of the plaintiff, **HAROLD RIVERS** , was carried out by

defendant, **DUFFY**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

46. That, the aforementioned false detainment/false imprisonment of the plaintiff, **HAROLD RIVERS**, was carried out by defendant, **SCHEINBLUR** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

47. That, by reason of the foregoing, the plaintiff, **HAROLD RIVERS**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

48. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

49. That, by reason of the foregoing, the plaintiff, **HAROLD RIVERS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

50. The plaintiff, **HAROLD RIVERS** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 49, with the same force and effect as if hereinafter more fully set forth at length herein.

51. That the plaintiff, **HAROLD RIVERS** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely detained/imprisoned, assaulted and battered, with excessive force, including being strip searched being used against him; and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

52. That at all times hereinafter mentioned, the defendant, **DUFFY** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

53. That at all times hereinafter mentioned, the defendant, **SCHEINBLUR** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of

the defendant, **THE CITY**.

54. Defendant, **DUFFY**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **DUFFY** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

55. Defendant, **SCHEINBLUR**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **SCHEINBLUR** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

56. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **HAROLD RIVERS** of the following rights, privileges and immunities secured to him by the Constitution of the United States

and of the State of New York: The right of plaintiff, **HAROLD RIVERS** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **HAROLD RIVERS** , to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **HAROLD RIVERS** , not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

57. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendants while acting under color of state law and within the scope of his employ.

58. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of detaining individuals without probable cause.

59. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of detaining minorities without probable cause.

60. That the deprivation of plaintiff, **HAROLD RIVERS's** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for detaining individuals without probable cause.

61. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

62. That the detaining of plaintiff, **HAROLD RIVERS** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

63. That the deprivation of plaintiff, **HAROLD RIVERS's** Constitutional rights was the result of the defendant, **DUFFY's** detaining of the plaintiff **HAROLD RIVERS** without probable cause.

64. That the deprivation of plaintiff, **HAROLD RIVERS's** Constitutional rights was the result of the defendant, **SCHEINBLUR's** detaining of the plaintiff **HAROLD RIVERS** without probable cause.

65. That the deprivation of plaintiff **HAROLD RIVERS's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive and improper force.

66. That the deprivation of plaintiff, **HAROLD RIVERS's** Constitutional rights was the result of the defendant, **DUFFY's** use of excessive and improper force.

67. That the deprivation of plaintiff, **HAROLD RIVERS's** Constitutional rights was the result of the defendant, **SCHEINBLUR's** use of excessive and improper force.

68. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **HAROLD RIVERS** .

69. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false detainment/imprisonment, assault and battery, use of excessive and unreasonable force; in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **HAROLD RIVERS** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

70. That, by reason of the foregoing, the plaintiff **HAROLD RIVERS** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

71. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

72. That, by reason of the foregoing, the plaintiff, **HAROLD RIVERS**, has sustained damages in an amount in excess of

the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **HAROLD RIVERS** , demands judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
January 6, 2020

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
HAROLD RIVERS
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

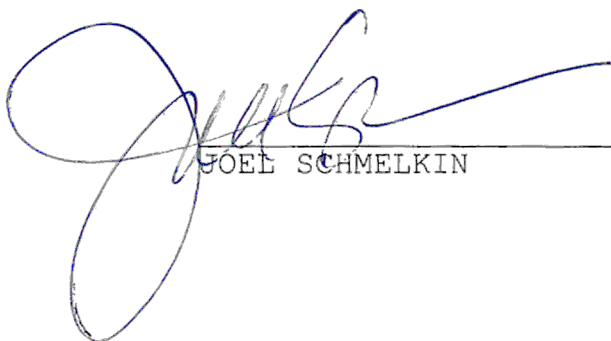
ATTORNEYS VERIFICATION

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff for the reason that plaintiff does not reside within the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C..

Dated: New York, New York
January 6, 2020



JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

HAROLD RIVERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, MICHAEL DUFFY,
and IAN SCHEINBLUR,

Defendants

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Harold Rivers

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: January 8, 2020....

Signature

Print Signer's Name..... JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐ NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐ NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____ 20 _____, at _____ M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR